

## 25TRCV04051 25TRCV04051

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Case Number: 25TRCV04051 Hearing Date: July 16, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JOHN O.W. ROE

, et al.;

Plaintiffs,

vs.

DEL AMO HOSPITAL, INC.

, et al.;

Defendants.

Case

No.:

25TRCV04051

Hearing

Date:

July  
16, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANTS DEL AMO HOSPITAL, INC. AND UHS OF  
DELAWARE, INC.'S DEMURRER TO PLAINTIFFS' SECOND AMENDED COMPLAINT

(2)

DEFENDANTS DEL AMO HOSPITAL, INC. AND UHS OF  
DELAWARE, INC.'S MOTION TO STRIKE PORTIONS OF PLAINTIFFS' SECOND AMENDED  
COMPLAINT

(3)

PLAINTIFFS' REQUEST FOR LEAVE TO AMEND

MOVING PARTY: Defendants, Del Amo Hospital, Inc.  
and UHS of Delaware, Inc.

RESPONDING PARTY: Plaintiffs, John O.W. Roe, Jane W.Y. Roe,  
Jane T.B. Roe, and Jane M.H. Roe

(1)

Defendants

Del Amo Hospital and UHS of Delaware, Inc.'s Demurrer to Plaintiffs' Second  
Amended Complaint is SUSTAINED pursuant to Code of Civil Procedure section  
430.10.

(2)

Defendants

Del Amo Hospital and UHS of Delaware, Inc.'s Motion to Strike Portions of Plaintiffs'  
Second Amended Complaint is GRANTED IN PART pursuant to Code of Civil Procedure  
section 435.

(3)

Plaintiffs

are GRANTED twenty (20) Days Leave to Amend.

The Court considers the moving papers filed on June 3 and 4, 2026, the opposition briefs filed on July 2, 2026, and the reply briefs filed on July 9, 2026.

## BACKGROUND

### Factual Background

On November 26, 2025, plaintiffs John O.W. Roe, Jane W.Y. Roe, Jane T.B. Roe, and Jane M.H. Roe (collectively, "Plaintiffs") filed the Complaint for Damages against defendants Del Amo Hospital, Inc. dba Del Amo Behavioral Health System ("Del Amo"), UHS of Delaware, Inc. ("UHSD"), Universal Health Services, Inc., John 1 Doe, Jane 2 Doe, John 3 Doe, Jane 4 Doe, John 5 Doe, John 6 Doe, and DOES 7 through 100 (collectively, Defendants").

On January 23, 2026, Plaintiffs filed the First Amended Complaint for Damages ("FAC") against Defendants.

On February 19, 2026, Plaintiffs filed a Notice of Related Case, informing the Court of Case No. 25TRCV04426.

On April 28, 2026, Plaintiffs filed the Second Amended Complaint ("SAC") against Defendants. The SAC includes the following causes of action: (1) Violation of the Unruh Act (Civil Code § 51); (2) Sexual Harassment (Civil Code § 51.9); (3) Constructive Fraud (Civil Code § 1573); (4) Intentional Infliction of Emotional Distress; (5) Negligence; (6) Negligent Supervision; (7) Negligent Hiring and Retention; (8) Negligent Failure to Warn, Train, or Educate; (9) Sexual Assault; (10) Sexual Battery (Civil Code § 1708.5); and (11) Gender Violence (Civil Code § 52.4).

Following the service of the SAC, the parties participated in a videoconference to discuss the issues raised in the demurrer and the motion to strike. (Declaration of Moira S. Brennan re: Demurrer ("Brennan Decl. re: Dem."), ¶ 3; Declaration of Moira S. Brennan

re: Motion to Strike ("Brennan Decl. re: MTS"), ¶ 3.) The parties were unable to reach an agreement or resolve the matters concerning the SAC.  
(Brennan Decl. re: Dem., ¶ 3; Brennan Decl. re: MTS, ¶ 3.)

#### MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd. (a)(2), 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer, or to grant or deny a motion to strike. (Code Civil Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Following the service of the SAC, the parties participated in a videoconference to discuss the issues raised in the demurrer and the motion to strike. (Brennan Decl. re: Dem., ¶ 3; Brennan Decl. re: MTS, ¶ 3.) The parties were unable to reach an agreement or resolve the matters concerning the SAC. (Brennan Decl. re: Dem., ¶ 3; Brennan Decl. re: MTS, ¶ 3.)

Accordingly, the Court finds that the parties sufficiently met and conferred.

#### DEMURRER

##### Legal Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311,

318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, “[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

“Notwithstanding any other law, in any action under this chapter in which the defendant demurs or moves to strike the complaint or any portion thereof, the hearing on the motion shall be not less than five court days nor more than seven court days after the filing of the notice of motion.” (Code Civil Proc., § 1170, subd. (b)(1).)

## Discussion

First Cause of Action – Violation of the Unruh Act (Civil Code § 51)

Del Amo and UHSD (collectively, “Defendants”) demur to Plaintiffs’ first cause of action for violation of the Unruh Act on the grounds that Plaintiffs “fail to plead discrimination as required to state a claim for an Unruh Civil Rights Act Violation[.]” (Dem., p. 2:26-27.)

“The Unruh Act prohibits

certain forms of discrimination against individuals by businesses. ... Unruh Act claims include the following elements: (i) defendant denied plaintiff full and equal accommodations, advantages, facilities, privileges, or services; (ii) that a substantial motivating reason for defendant's conduct was plaintiff's membership in a protected class; (iii) that plaintiff was harmed; and (iv) that defendant's conduct was a substantial factor in causing plaintiff's harm." (Nia v. Bank of America, N.A. (S.D.Cal. 2022) 603 F.Supp.3d 894, 906 (Nia).)

Moreover, "Plaintiff's complaint must include 'some factual context that gives rise to a plausible inference of discriminatory intent[.]' " (Nia, supra, 603 F.Supp.3d at p. 906; see Saurman v. Peter's Landing Property Owner, LLC (2024) 103 Cal.App.5th 1148, 1168, fn. 10 ["[I]ntentional discrimination is a required element under the Unruh Civil Rights Act"].) Plaintiffs must sufficiently allege that they were subjected to intentional discrimination based on their status as a member of a protected class. (Duronslet v. County of Los Angeles (2017) 266 F.Supp.3d 1213, 1217.)

First, Plaintiffs contend that they have experienced age-based discrimination, claiming that "DEL AMO operates a Child and Adolescent Inpatient Program that exclusively admits minor patients. PLAINTIFFS were admitted to that program because they were minors. Adult patients on adjoining units at DEL AMO did not share the unit, supervision regime, seclusion practices, or staffing model applicable to PLAINTIFFS. The deficient supervision conditions, cross-gender supervision practices, and unmonitored seclusion practices that enabled PLAINTIFFS' abuse were unique to the Child and Adolescent Inpatient Program and were applied to PLAINTIFFS because of their minor status." (SAC, ¶ 82.)

Second, Plaintiffs contends that the different treatment afforded to adults and children illustrates that "DEFENDANTS denied PLAINTIFFS full and equal accommodations, advantages, facilities, privileges, and services in the operation of DEL AMO as a business establishment." (SAC, ¶ 85.) They further assert that "[a] substantial motivating reason for DEFENDANTS' conduct was PLAINTIFFS' membership in the protected classes of minors. DEFENDANTS' conduct was intentional, in that DEFENDANTS knowingly maintained the policies and practices set forth above with awareness that those policies and practices imposed disparate burdens on minor patients."

(SAC, ¶ 86.)

However, Plaintiffs do not provide factual allegations sufficient to demonstrate that Defendants intentionally discriminated against them on the basis of their age. Rather, the presented allegations only demonstrate that Defendants “operated a mental health treatment center with a child and adolescent inpatient program—not that [Defendants] intentionally discriminated against Plaintiffs because of their age.” (Reply, p. 2:22-24.)

Accordingly, Defendants' demurrer with respect to the first cause of action for violation of the Unruh Act is SUSTAINED.

Second and Fourth Causes of Action –  
Sexual Harassment (Civil Code § 51.9) and Intentional Infliction of Emotional Distress

Defendants demur to Plaintiffs' second cause of action for sexual harassment and fourth cause of action for intentional infliction of emotional distress on the grounds that Plaintiffs “fail to plead facts to support liability under respondeat superior/vicarious liability” or “ratification.” (Dem., pp. 5:4-5, 7:6.)

Respondeat Superior

“The rule of respondeat superior is familiar and simply stated: an employer is vicariously liable for the torts of its employees committed within the scope of the employment. [Citation.] Equally well established, if somewhat surprising on first encounter, is the principle that an employee's willful, malicious and even criminal torts may fall within the scope of his or her employment for purposes of respondeat superior, even though the employer has not authorized the employee to commit crimes or intentional torts.” (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 296 (Lisa M.), citation omitted.)

But, “the employer will not be held liable for an assault or other intentional tort that did not have a causal nexus to the employee's work.” (Lisa M., supra, 12 Cal.4th at p. 297.) “[V]icarious liability [has

been] deemed inappropriate where the misconduct does not arise from the conduct of the employer's enterprise but instead arises out of a personal dispute [Citation], or is the result of a personal compulsion [Citation.]" (Id. at p. 301, citations omitted.) "[R]espondeat superior liability requires that the risk of the tort have been engendered by, 'typical of or broadly incidental to,' or, viewed from a somewhat different perspective, 'a generally foreseeable consequence of,' [the employer's] enterprise." (Id. at p. 300.) "As with [] nonsexual assaults, a sexual tort will not be considered engendered by the employment unless its motivating emotions were fairly attributable to work-related events or conditions." (Id. at p. 301.)

In the case of Lisa M., a hospital ultrasound technician committed sexual assault against a patient during an ultrasound examination. (Lisa M., supra, 12 Cal.4th at p. 295.) The California Supreme Court found that the "technician simply took advantage of solitude with a naive patient to commit an assault for reasons unrelated to his work. ... The technician's decision to engage in conscious exploitation of the patient did not arise out of the performance of the examination, although the circumstances of the examination made it possible. 'If ... the assault was not motivated or triggered off by anything in the employment activity but was the result of only propinquity and lust, there should be no liability.' [Citation.]" (Id. at p. 301, citation omitted.)

With respect to the second cause of action, Plaintiffs' allegations reflect circumstances that are similar to Lisa M. Plaintiffs allege that THE PERPETRATORS, who are members of the medical staff at Del Amo and UHSD, "sexually harassed, molested and abused" Plaintiffs during the course of THE PERPETRATORS' employment. (SAC, ¶¶ 50-51.) Specifically, Plaintiffs assert that THE PERPETRATORS engaged in various sexual acts against them or compelled Plaintiffs to perform sexual acts on THE PERPETRATORS during instances of bathing, restraint, or isolation. (SAC, ¶¶ 47, 51-54, 97-98.) Plaintiffs contend that these actions were perpetrated for THE PERPETRATORS' "own sexual gratification and perversion." (SAC, ¶¶ 51-54.) Consequently, similar to the hospital ultrasound technician, THE PERPETRATORS exploited the vulnerability of adolescents, acting out of "propinquity and lust." The allegations imply that the actions of THE PERPETRATORS were not motivated by emotions or conditions that could reasonably be attributed to their professional responsibilities.



Plaintiffs contend that the abuse arose from, and was a foreseeable consequence of, “the very custodial powers [Defendants] delegated to the perpetrators as employees: physical restraint using restraint techniques, orders, and equipment authorized by [Defendants]; confinement in seclusion rooms accessible only through employer-issued keys, badges, and access codes; administration or threatened administration of psychotropic medication under [Defendants]-authorized PRN orders; and the grant or removal of facility privileges that only staff could control.”  
(Opp., pp. 5:24-6:6.)

Although Defendants allegedly provided their employees with custodial powers over Plaintiffs, this does not imply that sexual harassment, molestation, and abuse were foreseeable outcomes of their roles. As in the Lisa M. case, while the conditions of employment may have made such misconduct possible, it is an unreasonable reach to find that sexual abuse is a foreseeable result or that it is “typical of or broadly incidental to” activities such as bathing, restraint, or isolation. As such, the Defendants are not vicariously liable within the meaning of the Respondeat Superior doctrine.

With respect to the fourth cause of action, Defendants do not present a legal analysis demonstrating their inability to be held vicariously liable under the doctrine of respondeat superior. However, Plaintiffs do not contend that Defendants should be vicariously liable.  
(SAC, ¶¶ 129-137; Opp., p. 9:1-27.)  
Consequently, the Court finds this argument irrelevant.

#### Ratification

“As an alternate theory to respondeat superior, an employer may be liable for an employee's act where the employer either authorized the tortious act or subsequently ratified an originally unauthorized tort. [Citation.] The failure to discharge an employee who has committed misconduct may be evidence of ratification. [Citation.] The theory of ratification is generally applied where an employer fails to investigate or respond to charges that an employee committed an intentional tort, such as assault or battery. [Citations]” (Baptist v. Robinson (2006) 143 Cal.App.4th 151, 167, citations omitted.)

With respect to the second cause of action, Plaintiffs rely on the

following allegations to substantiate their claim of ratification: “With respect to actual or constructive knowledge: on information and belief, prior to PLAINTIFFS’ last instance of abuse, DEL AMO and [UHSD] had received complaints, incident reports, and reports of grooming or boundary-violation behavior concerning the DOE PERPETRATORS.

These complaints were entered into, or should have been entered into, the centralized incident reporting and risk-management systems maintained by [UHSD] and accessible to [UHSD’s] compliance, risk-management, and executive personnel.” (SAC, ¶ 100.) “With respect to continued employment: notwithstanding receipt of the foregoing complaints, DEL AMO and [UHSD] continued to employ each DOE PERPETRATOR in a position of unsupervised access to minor patients.” (SAC, ¶ 101.) “With respect to suppression of evidence: DEL AMO and [UHSD] suppressed evidence of the DOE PERPETRATORS’ sexual misconduct by, among other means on information and belief, by failing to enter complaints into the centralized incident-reporting system; downgrading complaints from ‘sexual misconduct’ to non-reportable categories; instructing complainants not to discuss complaints with parents or guardians; failing to make mandated reports under Penal Code §§ 11160 and 11166; destroying or failing to retain incident reports beyond minimum retention periods; and conducting sham internal ‘investigations’ without interviewing complainants or witnesses. These suppression practices were authorized, directed, or ratified by DEL AMO’s Director of Risk Management, Patient Safety Officer, and Chief Executive Officer; and by [UHSD] Behavioral Health Division’s regional compliance officers.” (SAC, ¶ 102.)

However, these allegations are insufficient. Courts “may not consider conclusions of fact ... , opinions, speculation or allegations which are contrary either to law or to judicially noticed facts” [Citation.]

We also do not accept as true adjectival descriptions ... or unsupported speculation. [Citation.]” (Dominguez v. Bonta (2022) 87

Cal.App.5th 389, 124, internal citations and quotations omitted.) Moreover, “Plaintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.” (Pridonoff v. Balokovich (1951) 36 Cal.2d 788, 792.)

Here, Plaintiffs’ contentions regarding actual or constructive knowledge, suppression of evidence, and the individuals responsible for authorizing, directing, or ratifying those alleged practices are based on “information and belief.” Plaintiffs fail to provide

any information that would reasonably support their belief in the truth of these allegations. Absent this information, the allegations appear to be no more than unsupported speculation.

Similarly, with respect to the fourth cause of action, Plaintiffs again rely on “information and belief” to claim that Defendants received prior complaints of sexual misconduct, intentionally suppressed investigations of these complaints, and concealed patterns of abuse. (SAC, ¶ 131.)

Moreover, on “information and belief,” they allege that the Director of Risk Management, the Patient Safety Officer, the Chief Executive Officer, and/or compliance personnel within the UHS Behavioral Health Division made decisions regarding the suppression of evidence. (SAC, ¶ 131.)

Again, Plaintiffs fail to provide information that would reasonably support their belief in the truth of these allegations, and therefore, they fail to demonstrate ratification. Thus, the Defendants are not liable within the meaning of the theory of ratification.

However, the Court notes that Plaintiffs assert direct liability against Defendants with respect to the fourth cause of action: intentional infliction of emotional distress. (SAC, ¶ 131.) Absent a showing by the Defendants that they are not directly liable, their demurrer is **OVERRULED** with respect to the fourth cause of action and **SUSTAINED** with respect to the second cause of action for sexual harassment.

### Third Cause of Action – Constructive Fraud (Civil Code § 1573)

Defendants demur to Plaintiffs’ third cause of action for constructive fraud on the grounds that: (1) there was no fiduciary relationship between Defendants and Plaintiffs; (2) Plaintiffs omit specific details of intentional or fraudulent activity; and (3) Plaintiffs do not demonstrate any individual’s intent to deceive. (Dem., pp. 10:9-12:19.) The Court concurs with the first argument and will refrain from addressing the remaining two.

“To prove [constructive fraud], the [plaintiff] must show (1) a fiduciary relationship, (2) nondisclosure, (3) intent to deceive, and (4) reliance and resulting injury. Constructive

fraud is any breach of duty that, without fraudulent intent, gains an advantage to the person at fault by misleading another to [their] prejudice.” (Tindell v. Murphy (2018) 22 Cal.App.5th 1239, 1249-1250.)

“[A] fiduciary relationship is any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other party. Such a relation ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter’s knowledge or consent[.]” (Cleveland v. Johnson (2012) 209 Cal.App.4th 1315, 1338, quotations and citation omitted.) “Technically, a fiduciary relationship is a recognized legal relationship such as guardian and ward, trustee and beneficiary, principal and agent, or attorney and client [citation], whereas a ‘confidential relationship’ may be founded on a moral, social, domestic, or merely personal relationship as well as on a legal relationship.” (Barbara A. v. John G. (1983) 145 Cal.App.3d 369, 382.)

Plaintiffs contend that Defendants “owed PLAINTIFFS a fiduciary duty by virtue of the special, trusting, confidential, and in loco parentis relationship between a locked psychiatric facility and its admitted minor patients, who were legally confined and entirely dependent on the institution for every aspect of their welfare.” (SAC, ¶ 113.) However, Plaintiffs do not adequately plead or argue that this relationship constitutes a “recognized legal relationship.”

Accordingly, Defendants’ demurrer with respect to the third cause of action for constructive fraud is SUSTAINED.

#### Fourth Cause of Action – Intentional Infliction of Emotional Distress

Defendants demur to Plaintiffs’ fourth cause of action for intentional infliction of emotional distress on the grounds that Plaintiffs fail to plead intentional misconduct. (Dem., p. 9:10.)

“A cause of action for intentional infliction of emotional distress exists when there is (1) extreme

and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. [Citations.] A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citation.] And the defendant's conduct must be intended to inflict injury or engaged in with the realization that injury will result. [Citation.]" (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051, internal citations and quotations omitted.) "Under the respondeat superior doctrine, an employer is liable for the torts of its employees committed within the scope of employment." (Crouch v. Trinity Christian Center of Santa Ana, Inc.(2019) 39 Cal.App.5th 995, 1011.)

Plaintiffs assert that the following actions constitute extreme and outrageous conduct: "receiving prior complaints of sexual misconduct against the perpetrators and deliberately retaining each in a position of unsupervised access to minors with knowledge of the substantial risk; deliberately suppressing investigations through enumerated means; failing to make mandated reports of suspected child sexual abuse; affirmatively concealing the pattern of abuse from patients, families, regulators, and the public, including by misrepresenting the unit's safety record in admissions materials and instructing minor complainants not to tell their parents; and maintaining staffing and seclusion-monitoring practices Defendants knew or recklessly disregarded would result in the abuse of minors[.]" as Defendants were aware of prior incidents. (Opp., p. 9:5-12; SAC, ¶ 131.)

Notwithstanding, as discussed above, these allegations are based on "information and belief[.]" and Plaintiffs do not provide any information that would reasonably support their belief in the truth of these allegations. (Pridonoff v. Balokovich (1951) 36 Cal.2d 788, 792.) Without this supporting information, the allegations are unfounded speculation. Therefore, Plaintiffs fail to demonstrate that Defendants engaged in extreme and outrageous conduct.

Therefore, Defendants' demurrer to the fourth cause of action for intentional infliction of emotional distress is SUSTAINED.

MOTION TO STRIKE

## Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b), emphasis added.) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

## Discussion

Defendants seek to strike the following: (1) references to punitive damages located in paragraphs 6, 7, 71, 117, and 137; (2) allegations that are irrelevant, false, and improper in paragraphs 1, 2, 3, 13, 14, 15, 17, 58, and 60; and (3) requests for injunctive relief presented in paragraphs 87 and 89. (Amend. Notice of MTS, pp. 2:1-6:17.) However, the Court notes that Defendants' request to strike portions of paragraphs 87, 89, 117, and 137 is rendered MOOT due to the sustainment of the demurrer pertaining to the first, second, third, and fourth causes of action. Consequently, the Court will focus solely on the arguments related to punitive damages and the claims of irrelevant, false, and improper allegations.

## Punitive Damages

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant

has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) A motion to strike punitive damages is properly granted when a plaintiff does not state a prima facie claim for punitive damages. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.)

“Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” [Citation.]” (Lackner v. North (2006) 135 Cal.App.4th 1188, 1210.)

“As amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’” (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.) Further, “[t]here must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff’s interests and deliberately failed to avoid these consequences.” (Flyer’s Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

“Oppression” means “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).)

“Fraud” means “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

“An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an

employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b), emphasis added.) Given that Defendants function as corporate entities, the provisions of Civil Code section 3294, subdivision (b), are applicable.

Here, Plaintiffs are only entitled to pursue punitive damages against Defendants in connection with their claims for sexual harassment, constructive fraud, and intentional infliction of emotional distress. (Opp., p. 5:2-3.) Given that the Defendants’ demurrer has been SUSTAINED with respect to these specific causes of action, Plaintiffs request to seek punitive damages is DENIED.

Accordingly, the Court STRIKES any references to punitive damages located in paragraphs 6, 7, and 71.

#### Irrelevant, False, and Improper Allegations

Defendants assert that the allegations presented are irrelevant, false, or improper. (MTS, pp. 8:1-2.) The Court partially agrees, acknowledging that some of these allegations are indeed irrelevant.

“A complaint, whatever may be the character of relief sought, must state only issuable facts, and not mere matters of evidence. Where this rule has been violated, a motion by defendant to strike out the irrelevant matter should be sustained.” (Bowen v. Aubrey (1863) 22 Cal.566, 566.) “Irrelevant matter, though pleaded, is still irrelevant.” (Fisher v. Nash Bldg. Co. (1952) 113 Cal.App.2d 397, 403.)

The Court notes that Defendants only specifically address paragraphs 2, 14, and 17 in their motion



to strike. (MTS, pp. 8:5-9:10.) Consequently, the Court will limit its analysis to these paragraphs.

Defendants characterize

paragraph 2 as an “attempt[] to vilify” them.

(MTS, p. 8:5.) The Court agrees with this characterization. While Plaintiffs contend that paragraph 2

pertains to “notice and foreseeability,” the Court observes that this paragraph

includes allegations of abuse occurring at other UHSD facilities. (Opp., p. 5:21-22.) It remains unclear how allegations of abuse

at these other facilities would place Defendants on notice regarding potential abuse at the Del Amo facility.

Additionally, Defendants

contend that paragraphs 14 and 17, which pertain to their revenue, the number

of facilities under their management, the patient population they serve, and a

list of other facilities where unrelated instances of abuse are asserted, do

not advance Plaintiffs’ case. (MTS, p. 8:12-14.) The Court concurs that this information does not support any claim or legal element pertinent to the matter at hand.

Plaintiffs assert that these

paragraphs are “directly material to whether [UHSD’s] officers are ‘managing

agents’ whose decisions determined corporate policy under section 3294(b) and White

v. Ultramar[.]” (Opp., p. 5:17-18.) However, Plaintiffs fail to provide a clear

explanation of how these paragraphs substantiate their assertion.

Accordingly, the Court STRIKES

the irrelevant allegations in paragraphs 2, 14, and 17.

## ORDERS

### 1) Defendants

Del Amo Hospital and UHS of Delaware, Inc.’s Demurrer to Plaintiffs’ Second

Amended Complaint is SUSTAINED.

### 2) Defendants

Del Amo Hospital and UHS of Delaware, Inc.’s Motion to Strike Portions of

Plaintiffs’ Second Amended Complaint is GRANTED IN PART. The Court STRIKES any references to punitive damages located in paragraphs 6, 7,

and 71. The Court STRIKES the irrelevant

allegations in paragraphs 2, 14, and 17.

3) Defendants

are ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 16, 2026

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Tamara

Hall

Judge

of the Superior Court